

C.C.R.B TRUNCATED CASE CLOSING FORM

Investigator assigned: Ludwig		Team: 7	CCRB#: 200001569	☒ Force ☒ Discourtesy ☒ Abuse ☐ O.L. ☐ Injury
Date of incident: 3/14/00	Time of incident: 5:00 PM	Location of incident: Hunts Point train station, Bronx	Pct. of occurrence: 041	Date S.O.L. Expires: 9/14/01
Date reported: 3/14/00	Time reported: 5:40 PM	To whom/where/how reported: In person to Lt. Santiago at Transit District 12		
Complainant: § 87(2)(b)		Home address:		
Victim(s): § 87(2)(b)		Home address:		
Witness(es): § 87(2)(b)		Home address:		
Subject officer(s) (include rank): PO Johnny Orellana PO John Baumister		Shield: 07572 24846	Tax: 920679 921962	Command: Transit District 12 Transit District 12
Witness officer(s) (include rank):		Shield:	Tax:	Command:
Allegation(s) by letter: A) Force: PO Johnny Orellana used physical force against § 87(2)(b) B) Abuse of authority: PO John Baumister used physical force against § 87(2)(b) C) Discourtesy: An officer spoke obscenely.				Recommendation(s): A) Victim uncooperative B) Victim uncooperative C) Victim uncooperative

Synopsis

According to the NYPD Civilian Complaint Report that § 87(2)(b) prepared at Transit District 12, on March 14, 2000, at 5:00 PM, there was a "misunderstanding" between her daughter, § 87(2)(b) who lives with the § 87(2)(b) and Police Officers Orellana and Baumeister at the turnstile at the Hunts Point subway station, on the number six line, in the Bronx. PO Orellana allegedly hit § 87(2)(b) in the face. PO Baumister allegedly shoved § 87(2)(b) and searched her in an undisclosed "private area." One of the civilian witnesses told the officers not to hit children and one of the officers told her to move on and said, "Shut up, bitches."

PO Orellana's memo book, which was forwarded from Transit District 12, stated he ejected § 87(2)(b) from the Hunts Point train station after observing her crawl under the turnstile rather than paying the fare. § 87(2)(b) then jumped over the turnstile passing through without paying a second time. PO Orellana started to eject § 87(2)(b) a second time but she resisted and started to use obscene language so PO Orellana placed her under arrest. § 87(2)(b) was arrested after resisting because she got in the way and "made a scene" when § 87(2)(b) was being arrested. § 87(2)(b) was arrested § 87(2)(b)

PO Baumeister's memo book stated that as one of the women was being arrested she told him that she would, "Snuf me like she snuffed my boy," referring to her previous assault of PO Orellana.

A Firearms Discharge/Assault Report completed by PO Orellana stated that § 87(2)(b) punched him in the face three times while he was arresting § 87(2)(b)

The On Line Booking Sheets (OLBS work sheets) for the three women indicated that force was used to effect their arrests but that all three women were uninjured. § 87(2)(b) was charged with

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The Transit District 12 Command Log lists all three arrests and states that the women's physical condition was apparently normal.

On March 16, 2000 a letter was sent and calls were placed to § 87(2)(b) and messages were left for her at her work and home telephone numbers. On March 20, 2000, a call was placed to § 87(2)(b) who scheduled an appointment for her daughters and their friends for March 27, 2000, which they subsequently missed. A missed appointment letter was sent. Calls were placed to § 87(2)(b) on March 28 and March 29, 2000, at which time § 87(2)(b) scheduled an appointment for her daughters and their friends on April 3, 2000, which they subsequently missed. § 87(2)(g)

§ 87(2)(g) it is recommended that this case be closed as victim uncooperative.

Investigator:

[Signature]

Date:

4.5.00

Supervisor:

[Signature]

Date:

4/5/00

Reviewed
by:

[Signature]

Date:

4/5/00

Reviewed
by:

[Signature]

Date: